

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Hui	Team: Team # 5	CCRB Case #: 200200686	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 02/01/2002 9:23 AM	Location of Incident: Corner of Dickerson Avenue and Van Cortlandt Park South	Precinct: 52	18 Mo. SOL 8/1/2003	EO SOL 8/1/2003	
Date/Time CV Reported Fri, 02/01/2002 12:00 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Fri, 02/01/2002 12:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Alps	02049	926498	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Timothy Allen	00166	926494	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Thomas Alps	Off. Language: PO Thomas Alps made remarks to § 87(2)(b) based upon ethnicity.	
B.POM Thomas Alps	Abuse: PO Thomas Alps damaged § 87(2)(b) property.	

Synopsis

§ 87(2)(b) the complainant, alleged that PO Thomas Alps called him a “fucking Spanish” (allegation A) and ripped up his paperwork (allegation B). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Summary of Complaint

Account of § 87(2)(b)

This complaint was filed by § 87(2)(b) in person at the 52nd Precinct on 2/1/02. § 87(2)(g)

§ 87(2)(b) made no mention of the offensive language allegation against PO Alps as he was filing the complaint at the 52nd Precinct, but he did so during his CCRB interview.

§ 87(2)(b) was interviewed at the CCRB on 2/15/02 (see enclosure 5). On 2/1/02 at approximately 9:20 a.m., § 87(2)(b) was driving on Dickerson Avenue and approached the intersection of Van Cortlandt Road in the Bronx. § 87(2)(b) could not be sure of the intersection) to signal for a left turn. § 87(2)(b) stated there was a van in front of him that had signaled to turn right, but attempted to make a swift left turn instead. § 87(2)(b) stopped his vehicle abruptly, but did not hit the side of the van. The driver of the van immediately exited his vehicle and demanded that § 87(2)(b) pay for the damages to his van. § 87(2)(b) told the driver that he did not even hit the van and was not going to pay him any money. The driver pointed out that the Towncar had its right, front indicator lights that were broken, and he could tell the police that § 87(2)(b) did hit the van with his Towncar. § 87(2)(b) told the driver that he did not hit the van at anytime and to go ahead and call the police (this conversation was in Spanish). The driver then proceeded to the corner of the block and called 911. § 87(2)(b) noted there was a female occupant that exited the van as well.

About 5 minutes later, one patrol car arrived on the scene. § 87(2)(b) stated the driver of the van continually cursed at him and stuck his middle finger up, trying to provoke him throughout the entire 5 minutes). § 87(2)(b) stated because it was raining, he stayed in his car and the driver and the woman stayed in their van. The two officers spoke with the couple first, and then approached § 87(2)(b). PO Alps (identified by § 87(2)(b) through observing PO Alps’ shield) told § 87(2)(b) to settle the incident by paying off the driver of the van. § 87(2)(b) tried to tell PO Alps § 87(2)(b) could not speak English) that there was no accident and he did not want to pay the driver any money. § 87(2)(b) stated PO Alps became irritated and asked for § 87(2)(b)’s paperwork. About 15 minutes later, PO Alps came back and asked if § 87(2)(b) had a home phone number so that PO Alps could fill it in on the report. § 87(2)(b) stated the persons in the van had already left at some point. § 87(2)(b) told PO Alps that he did not have a home phone number. PO Alps asked § 87(2)(b) if he spoke English. § 87(2)(b) told PO Alps that he did not speak English, and PO Alps said: “Fucking Spanish” (allegation A) PO Alps proceeded to rip up the incident slip, registration and insurance papers and threw the TLC license and driver’s license to the ground. The officers then drove away.

About 5 minutes later, both officers came back on the scene. § 87(2)(b) was mad at this time, and did not pick up his paperwork that was still lying on the ground outside of his car. PO Alps came back, exited the vehicle and asked § 87(2)(b) what happened. § 87(2)(b) did not respond, and PO Alps told § 87(2)(b) that he was sorry. PO Alps gestured to try and pick up § 87(2)(b)’s paperwork, but § 87(2)(b) motioned to PO Alps to not touch his paperwork

and pointed towards PO Alps saying: “No I’m sorry. I’m going to complain about you, give me your number.” PO Alps then said: “Okay, you can file a complaint at the 52nd Precinct.”

§ 87(2)(b) stated PO Alps’ partner had no interaction with him at anytime. § 87(2)(b) noted he did not know the persons from the minivan and did not have any contact information regarding these persons.

Results of Investigation

Location of Witness

Because no accident report was filed and a copy of accident information exchange report could not be obtained, § 87(2)(g)

Account of PO Thomas Alps

PO Thomas Alps was interviewed at the CCRB on 5/29/02 (see enclosure 7).

On 2/1/02 at approximately 9:20 a.m., PO Thomas Alps and PO Timothy Allen responded to a car accident at the corner of Sedgwick Avenue and Dickerson Avenue. PO Alps stated when he arrived on the scene, he observed § 87(2)(b) and the driver of the minivan yelling at each other; § 87(2)(b)’s vehicle was parked behind the minivan at this time. PO Alps separated both persons to diffuse the situation, and PO Allen proceeded to interview the driver of the minivan. PO Alps asked § 87(2)(b) what had happened, and § 87(2)(b) told PO Alps he was trying to get by the minivan at the traffic light but had scratched the vehicle in the process of doing so. § 87(2)(b) explained to PO Alps that it was just a small scratch, and PO Alps remembered a scratch of about 1-inch from the left rear panel of the minivan. PO Alps then interviewed the driver of the minivan; the driver was upset at this time because § 87(2)(b) was cursing after § 87(2)(b) scratched his car in the first place as well. The driver of the minivan wanted to sue § 87(2)(b) and to file an accident report. PO Alps proceeded to explain to the driver of the minivan that the damage was very minor, and the accident happened outside the confines of the 52nd Precinct as well. If he wanted to file a report, the officers would have to radio for other officers from the 50th Precinct to respond to the scene, and that would take some time. PO Alps presented another option to the driver, and that was to fill out an accident information exchange report. After this information was filled out, the driver of the minivan would have the option to fill out an accident report at a later time at the 50th Precinct if he chose to do so. The driver agreed, and gave all the paperwork to PO Alps. PO Alps then approached § 87(2)(b) to obtain his paperwork, and § 87(2)(b) was reluctant in giving PO Alps his license, registration, insurance papers and hack license because he felt it was a minor accident. PO Alps told § 87(2)(b) that he understood it was a minor accident but the driver of the minivan has a right to obtain his information. § 87(2)(b) gave PO Alps the paperwork, and both officers then went back to the patrol car and filled out the accident information exchange report. PO Alps stated the conversation was in English with both § 87(2)(b) and the driver of the minivan. Although § 87(2)(b) spoke in broken English, it was enough so that both PO Alps and § 87(2)(b) understood each other.

PO Alps stated he did not have § 87(2)(b)’s phone number, and proceeded to exit the patrol car to ask § 87(2)(b) § 87(2)(b) told PO Alps that he did not have a phone number; PO Alps speculated § 87(2)(b) was mad because he did not feel with such a minor accident that an accident report should be filled out. PO Alps did not say anything else to § 87(2)(b) and

then returned to the patrol car to finish filling out the information. PO Allen gave the paperwork to the driver of the minivan, and PO Alps proceeded to give the paperwork back to § 87(2)(b). PO Alps stated the driver of the minivan drove away after obtaining the information, but § 87(2)(b) refused to roll down his window. PO Alps continued to knock on the window and gesture for § 87(2)(b) to take his paperwork, but § 87(2)(b) refused to do anything as he continued to sit inside his car. At this time, PO Allen yelled to PO Alps that there was a call of an assault in progress two blocks away from where they were situated. PO Alps then knocked on the windshield of § 87(2)(b)'s vehicle, put all the paperwork on the windshield wiper, and entered his patrol car to drive away.

PO Alps stated it was a wrong address given by the dispatcher as they arrived on the scene two blocks away, so PO Alps told PO Allen that they would return to make sure § 87(2)(b) was okay. As they returned on the scene, PO Alps saw § 87(2)(b) in the same position, so PO Alps stopped his vehicle next to § 87(2)(b)'s vehicle. At this time, § 87(2)(b) spoke to PO Alps in Spanish. PO Alps stated he could mostly understand § 87(2)(b) as PO Alps did speak some Spanish, but with difficulty. § 87(2)(b) then exited his vehicle and approached PO Alps. § 87(2)(b) was slapping his hands and telling PO Alps that he should be handed the paperwork. PO Alps then apologized and proceeded to take the paperwork from the windshield and handed § 87(2)(b) his two driver's licenses, insurance, registration and hack license. PO Alps told § 87(2)(b) that they had an emergency situation two blocks away, and returned to him as soon as they could. PO Alps told § 87(2)(b) if he wanted to file the accident report he would have to go to the 50th Precinct.

At this time, § 87(2)(b) asked for PO Alps' badge number, as he wanted to file a complaint against PO Alps. PO Alps told § 87(2)(b) that his shield number was 2049 and proceeded to pull his badge towards § 87(2)(b) and told him that if he wanted to file a complaint against him, he would have to do that at the 52nd Precinct. § 87(2)(b) told PO Alps he was going to file a complaint against him. PO Alps told § 87(2)(b) if wanted to file a complaint against him, he would have to do that at the 52nd Precinct. PO Alps found out from the desk sergeant when he ended his tour that § 87(2)(b) attempted to file a complaint against him at the 50th Precinct but they referred him to the 52nd Precinct. When PO Alps saw § 87(2)(b) at the precinct, PO Alps also saw his paperwork ripped up as he was making out the civilian complaint report.

PO Alps stated § 87(2)(b) never asked for a translator at anytime. PO Alps stated he read the civilian complaint report prior coming to the CCRB interview, and PO Alps stated he was finding out for the first time that § 87(2)(b) alleged he called § 87(2)(b) "fucking Spanish."

PO Alps stated he did not have any information regarding the persons that were in the minivan; the information would have been on the accident information exchange report. PO Alps denied the allegations made against him.

Account of PO Timothy Allen

PO Timothy Allen was interviewed at the CCRB on 5/29/02 (see enclosure 9).

On 2/1/02 at approximately 9:20 a.m., PO Allen responded to the scene of a car accident with PO Alps. PO Allen saw two persons yelling at each other in Spanish when they exited their patrol car, and both officers proceeded to separate the individuals to diffuse the situation.

PO Allen spoke with the driver of the minivan who told PO Allen that the livery cab driver tried to pass him. The livery cab driver drove up on the curb but subsequently hit the minivan. § 87(2)(b) the livery cab driver, pointed out to PO Allen that the damage to the minivan was minimal, and PO Allen remembered the scratch to be no more than two inches. PO Allen stated the driver of the minivan still wanted to fill out an accident report because § 87(2)(b).

§ 87(2)(b) was arguing with him and had cursed at him. When PO Allen asked § 87(2)(b), § 87(2)(b) stated he did not want to file an accident report because the damage was minor. PO Allen stated he and PO Alps explained to the driver of the minivan that if he wanted to file an accident report, he would have to file it at the 50th Precinct. Both officers explained to them that they could exchange information at this time and they can choose to file the accident report themselves at the 50th Precinct at a later time.

PO Allen stated both persons agreed, and PO Allen obtained the paperwork from the driver of the minivan. PO Alps obtained the information from § 87(2)(b). After both officers filled out the accident information exchange report, PO Allen gave the information and paperwork to the driver of the minivan, and that driver left the area. PO Allen observed PO Alps tapping on the window of the livery cab, but § 87(2)(b) would not roll the window down, even though § 87(2)(b) was sitting in the driver's seat. While PO Alps was attempting to hand the paperwork back to § 87(2)(b), PO Allen heard a radio call of an assault in progress over the radio and yelled to PO Alps that they had to leave and respond.

PO Allen stated PO Alps put all the paperwork under the windshield wiper of the livery cab and drove the patrol car away.

About 10 minutes later, both officers wanted to return to the scene to ensure § 87(2)(b) was okay. When § 87(2)(b) saw the same officers arrive, he exited the vehicle. PO Allen stated PO Alps exited the vehicle to speak with § 87(2)(b). PO Allen did not understand Spanish, but only remembered § 87(2)(b) to be smacking both of his hands often during his conversation with PO Alps. PO Alps seemed to understand what § 87(2)(b) was saying, and PO Allen saw PO Alps take the paperwork from the windshield and handed all of it back to § 87(2)(b) one by one. After that, PO Alps entered the patrol car. At this time, § 87(2)(b) came to PO Alps and asked for his badge number. PO Alps then told § 87(2)(b) his badge number was 2049. § 87(2)(b) told PO Alps something else, and both officers drove away.

Police Documents

The sprint printout index obtained (see enclosure 10) did not reveal any calls regarding this incident.

The motor vehicle accident report index (see enclosure 11) did not reveal any accident reports filed regarding this incident.

Conclusions and Recommendations

Allegation A: Offensive Language: PO Thomas Alps made remarks to § 87(2)(b) based upon ethnicity.

Allegation B: Abuse of Authority: PO Thomas Alps damaged § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(b) noted that after PO Alps had ripped up his paperwork, he remained on the scene and did not drive away after the officers left. After about five minutes, § 87(2)(b) noted that the officers came back, and according to § 87(2)(b), PO Alps apologized for ripping up his paperwork and wanted to reconcile the situation with him. § 87(2)(g)

According to PO Alps, he needed to put all of § 87(2)(b)'s paperwork on the windshield because they had to respond to another more urgent job of an assault in progress two blocks away. After that job was unfounded (confirmed in PO Alps'

memobook notation), both officers arrived back where § 87(2)(b) was to make sure the job was finished. PO Alps further stated after § 87(2)(b) complained that his paperwork should be directly handed back to him, PO Alps apologized and handed back his paperwork to § 87(2)(g).

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§ 87(2)(b) told PO Alps that he was the person who caused the accident with the minivan driver, but because the accident was so minor there should be no accident report filed. § 87(2)(g) § 87(2)(b) told the investigator that he never cause an accident with the minivan, but had stopped his vehicle abruptly to avoid an accident.

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§ 87(2)(b) has never forwarded a copy of the accident report or the accident information exchange report to the CCRB during the course of this investigation. However, the motor vehicle accident report index (see enclosure 11) and PO Alps' memobook notations indicated that there was never an accident report filed regarding this incident. § 87(2)(g)

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Investigator:

Date:

Supervisor:

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Reviewed by:

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